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February 19, 2025

By: Stewart

An Act relating to vagrancy; amending 11 O.S. 2021, Section 22-123, which relates to vagrancy; defining term; authorizing business to contact law enforcement under certain circumstances; requiring removal of vagrant within certain distance of business upon certain determination; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 22-123, is amended to read as follows:

Section 22-123. A. As used in this act, "vagrant" means a person who is in, remains in, or wanders about a public or private place for any illegal purpose.

B. ~~The~~ A municipal governing body may provide by ordinance for the arrest, fine, and imprisonment of vagrants.

C. The proprietor or manager of a business has the right to contact law enforcement to remove a vagrant if the vagrant is within twelve (12) feet of any doorway of the business, even if such vagrant is on public property.

1 D. Upon arrival at the business, the law enforcement officer
2 shall determine, through personal observation or viewing of video
3 footage, whether the person accused of being a vagrant meets the
4 definition provided in subsection A of this section. Upon
5 determination that the person meets the definition of a vagrant, the
6 officer shall relocate the vagrant to public property that is at
7 least one-half (1/2) mile away from the location of the business
8 which made the initial contact to law enforcement. The location for
9 relocation shall not be within one-quarter (1/4) mile of any other
10 business.

11 SECTION 2. This act shall become effective November 1, 2025.

12 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
13 February 19, 2025 - DO PASS